

Court No. - 51

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 22381 of 2009

Petitioner :- Kailash Chandra Sharma

Respondent :- State Of U.P.

Petitioner Counsel :- Punit Kumar Gupta

Respondent Counsel :- Govt. Advocate

Hon'ble B.N. Shukla,J.

Heard learned counsel for the applicant and learned A.G.A. appearing for the State.

It is contended by the learned counsel for the applicant that the applicant himself had informed the S.D.O. concerned regarding tempered seal of the electricity meter and there is no variation in reading in M.R.I. report of meters. It is further contended that in clause 8.4 of the U.P. Electricity Supply Code, 2005, no FIR shall be lodged in case a consumer voluntarily declares the tampered meter and pays the requisite charges in time.

Learned A.G.A. contended that the applicant was found committing theft of electricity by tempering the meter.

Perused Annexure-3 to the affidavit and M.R.I. report. The applicant is in jail since 9.8.2009.

Considering the facts and circumstances of the case and submissions made by the learned counsel for the applicant and without expressing any opinion on the merits of the case, the applicant is entitled to be released on bail.

Let the applicant **Kailash Chand Sharma** involved in Case Crime No. 116 of 2009 under Sections 135/138 of Electricity Act, 2003, Police Station Narora, District Bulandshahr be released on bail on his furnishing a personal bond with two sureties each in the like amount to the satisfaction of the court concerned.

Order Date :- 26.8.2009

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